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California lawmakers pass ultra-processed food ban for schools

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A newly passed bill in California would ban so-called "ultra-processed" food in public school lunches by July 2032 as it waits on Gov. Gavin Newsom's signature.

Assembly Bill 1264, sponsored by Democratic Assemblyman Jesse Gabriel, passed both chambers of California's Legislature with only one vote against after it was introduced in February.

It defines ultra-processed as any food or beverage that contains either high amounts of saturated fat, sodium, added sugar flavor, "nonnutritive sweetener" or other substances.

Gabriel called it "historic" and said he's been working on these health issues "before anyone every heard of MAHA [Make America Healthy Again]."

"You've seen a lot of folks in Washington, D.C., talking about these issues, but we haven't seen a lot of action," Gabriel told Politico last week.

California's Department of Public Health will be tasked with identifying ultra-processed foot subcategories "of concern" and will look at FDA and other U.S. or international health warnings.

"We're actually going to move the needle on protecting kids and protecting families in California," Gabriel said.

A recent report by the Centers for Disease Control and Prevention said that young Americans aged 1-18 receive nearly 62% of their calories from ultra-processed foods.

California is now the second state to pass legislation that would ban ultra-processed food in school lunches. Arizona Gov. Katie Hobbs, a Democrat, signed HB 2164 in April for the 2026-2027 school year.

According to Gabriel, the bill took included 50 amendments, some of which set off alarm bells with lawmakers and agricultural interest groups.

Standing in opposition were the American Beverage Association, California Grocers Association and California Farm Bureau.

They said the law would create "unnecessary liability for schools serving these products, as well as manufacturers producing food subject to these arbitrary definitions," the three wrote Monday in a joint letter.

But Gabriel, the bill's author, said every one of California's 40 state senators "disagrees with them."

Newsom signed a previous bill authored by Gabriel in 2023 that banned certain food dyes in California schools by 2027.

"This bill will help protect California kids and establish an important new standard for the rest of the nation by getting harmful ultra-processed food out of our schools," Brian Ronholm, director of food policy at Consumer Reports, told Food Safety News.

Ronholm added that processed foods offer "little nutritional value and are deliberately engineered to make them hard to resist, which encourages unhealthy eating habits and overconsumption."

Newsom has no said if he intends to sign the bill, AB 1264, but he issued an executive order in January calling on state agencies to investigate and recommend ways to reduce health concerns related to ultra-processed foods.

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